

BOSCOBEL:

OR, THE

HISTORY

OF

HIS SACRED MAJESTIES

MOST MIRACULOUS

PRESERVATION

After the Battle of Worcester, 3. Sept. 1651.

JOEL i. 2.

Hear this ye Old Men, and give ear all ye Inhabitants of the Land: Has this been in your days, or in the days of your Fathers?

LONDON:

Printed for Henry Seile, Stationer to the Kings
most excellent Majesty, 1650.

DONCASTER:

REPRINTED AND SOLD BY THOMAS AND HUNSLEY,

Sold also by Stoddart & Craggs, Hull;

Mozley, Gainsbro'; Slater, Bacon, & Co. Sheffield;

and may be had of all other

Booksellers.

1809.

BOSCOBEL:
OR, THE
HISTORY
OF
HIS SACRED MAJESTIES
MOST MIRACULOUS
PRESERVATION

After the Battle of Worcester, 3. Sept. 1651.

JOEL i. 2.

Hear this ye Old Men, and give ear all ye Inhabitants of the Land: Has this been in your days, or in the days of your Fathers?

LONDON:

Printed for Henry Seile, Stationer to the Kings
most excellent Majesty, 1660.

DONCASTER:

REPRINTED AND SOLD BY THOMAS AND HUNSLEY,

Sold also by Stoddart & Craggs, Hull;
Mozley, Guinsbro'; Slater, Bacon, & Co. Sheffield;
and may be had of all other
Booksellers.

1809.

The Project Gutenberg eBook of Boscobel

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Boscobel

Author: Thomas Blount

Release date: June 6, 2011 [eBook #36339]

Language: English

Other information and formats: www.gutenberg.org/ebooks/36339

Credits: Produced by StevenGibbs and the Online Distributed
Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK BOSCOBEL ***



Cha.y. 2. was proclaymed King of great Britan, France & Ireland
at Worcester, 23 Aug. 1651.

BOSCOBEL:

OR, THE

HISTORY

OF

HIS SACRED MAJESTIES

**MOST MIRACULOUS
PRESERVATION**

After the Battle of Worcester, 3. Sept. 1651.

JOEL i. 2.

*Hear this ye Old Men, and give ear all ye Inhabitants of the
Land: Has this been in your dayes, or in the dayes of
your fathers?*

LONDON:

**Printed for *Henry Seile*, Stationer
to the Kings most excellent Majesty, 1660.**

DONCASTER:

REPRINTED AND SOLD BY THOMAS AND HUNSLEY,

**Sold also by Stoddart & Craggs, Hull;
Mozley, Gainsbro'; Slater, Bacon, & Co. Sheffield;
and may be had of all other
Booksellers.**

1809.

TO

THOMAS PARK,

AND

SAMUEL EGERTON BRYDGES,

ESQRS.

WHOSE UNITED EFFORTS,

IN RESCUING FROM OBLIVION THE EARLY
PRODUCTIONS OF THIS COUNTRY,
WILL CAUSE THEM TO BE REVERED BY EVERY
BIBLIOGRAPHER,
THIS LITTLE WORK
IS PRESENTED AS A TESTIMONY OF THE
UNFEIGNED REGARD
THE EDITOR OF THESE SHEETS
BEARS TO THEIR
LABOURS.

ADVERTISEMENT

FROM

THE EDITOR.

The book which is here republished contains an account of the sufferings of CHARLES the Second, after the battle of Worcester, until his escape to the continent;—written by a co-temporary, and dedicated to that monarch whose misfortunes he records; we may therefore naturally infer, that the book is a true relation of the same. [\[1\]](#)

As this work has become so scarce that a copy can with difficulty be procured, the editor thought he should do a service to the curious by having it reprinted *verbatim* [\[2\]](#) from the edition of 1660.

The subject of this tract is interesting: it teaches us the instability of human greatness. We are presented with a picture of the sufferings of one, by lineal descent born to be the governor of a kingdom, reduced to the alternative of either suffering on a scaffold, or quitting the kingdom in habits of disguise.

When princes forget their subjects, or they their king, then both lose their former allegiance and respect, they become mutual enemies, and their inveteracy does not diminish until one or both are on the precipice of destruction.

When Charles the First ascended the throne, his subjects were tenacious of that religious freedom which they had procured under the reign of a sovereign, whose name will ever be revered by innovators in theoretical principles of religion. They had shaken off their subjugation to the Roman Pontiff, and when he shewed signs of partiality to that persuasion, they dreaded the consequences. They had not yet forgot the atrocities committed in the reign of Mary; and were fearful, that if their liberties were abridged, the same enormities would ensue. They struggled for liberty, and he for power: both felt the lash of civil commotions.

When men are enthusiastically partial to an opinion, they are so zealous in its cause they will die in its support. How many people have suffered on this account, in all classes of religious opinions, in different nations? Such was the case at that period. A rage for polemical divinity took place, and brother against brother fought in support of each other's tenets; each fully assured he was in the right. The same spirit of innovation is too prevalent in the present day: the principles they profess are at variance with the prosperity and happiness of the country. They have made their way into our possessions in the East Indies; and by their influence have brought on disaffection among the native troops. From the organization of their native laws, they are particularly tenacious of their theological principles; according to which a man had better die than be a sceptic; for on embracing any other faith, he must first lose his cast; [3]and in that case he is deserted by all his relatives and countrymen, and driven from the society of all he holds most dear on earth, so that his life becomes insupportable.

In the present state of civil commotions in the European countries, caused by the ambitious views of Napoleon, it is exceedingly impolitic. It is well known that he wishes to add India to his possessions, and in the present disaffected state, nothing is more favourable to his designs; as they would immediately flock to a leader, who would hold out universal tolerance of religion; which has always been his maxim where he has extended his arms. Thus, through the enthusiastic zeal of a few, we may ultimately lose one of our finest possessions.

These people have universally promulgated such doctrines, that they affect the organization of the brain; and have been the ruin of many a happy family, by turning those who unfortunately had weak intellects mad. And, such progress have their tenets made, that we may infer, the period is not far distant when we shall see the orthodox church completely deserted by the middling and lower orders of people.

"For modes of faith, let graceless zealots fight;
"His can't be wrong, whose life is in the right."

POPE.



View of Boscobel House, taken in 1792.

TO THE
KINGS
MOST EXCELLENT MAJESTY.

SIR,

Among the many addresses, which every day offers your sacred Majesty, this humbly hopes your particular gracious acceptance; since it has no other ambition, then faithfully to represent to your Majesty, and, by your royal permission, to all the world, the history of those miraculous providences that preserv'd you in the battle of Worcester, conceal'd you in the wilderness at Boscobel, and led you on your way towards a land, where you might safely expect the returning favours of Heaven; which now, after so long a tryal, have graciously heard our prayers, and abundantly crown'd your patience.

And, as in the conduct of a great part of this greatest affair, it pleased God (the more to endear his mercies) to make choice of many very little, though fit instruments: So has my weakness, by this happy president, been encourag'd, to hope it not unsuitable for me to relate, what the wisest King thought proper for them to act; wherein yet I humbly beg your Majesties pardon, being conscious to my self of my utter incapacity to expresse, either your unparallel'd valour in the day of contending, or (which is a vertue far less usual for Kings) your strong and even mind in the time of your sufferings.

From which sublime endowments of your most Heroick Majesty I derive these comforts to my self, That whoever undertakes to reach at your perfections, must fall short as well as I, though not so much: And while I depend on your royal clemency more then others, I am more obliged to be

Your Majesties

Most loyal Subject,

And most humble Servant,

THO. BLOUNT.

TO THE

READER.

Behold, I present you with an History of Wonders; wonders so rare and great, that, as no former age can parallel, succeeding times will scarce believe them.

Expect here to read the highest tyranny and rebellion that was ever acted by subjects, and the greatest hardships and persecutions that ever were suffer'd by a King; yet did his patience exceed his sorrows, and his vertue at last became victorious.

Some particulars, I confess, are so superlatively extraordinary, that I easily should fear, they would scarce gain belief, even from my modern reader, had I not this strong argument to secure me, That no ingenuous person will think me so frontless, as knowingly to write an untruth in an history, where His Sacred Majesty (my dread Sovereign and the best of Kings) bears the principal part, and all the other persons concern'd in the same action (except the Earl of Darby and Lord Wilmot) still alive, ready to poure out shame and confusion on so impudent a forgery.

But I am so far from that foul crime of publishing what's false, that I can safely say, I know not one line unauthentick; such has been my care to be

sure of the truth, that I have diligently collected the particulars from most of their mouths, who were the very actors themselves in this scene of miracles.

To every individual person (as far as my industry could arrive to know) I have given the due of his merit, be it for valour, fidelity, or whatever other quality, that any way had the honour to relate to his Majesties service.

And though the whole complex may want elegance and politeness of style (which the nature of such relations does not properly challenge) yet it cannot want truth, the chief ingredient for such undertakings. In which assurance I am not afraid to venture myself in your hands.

Read on and wonder.

THE
HISTORY
OF
HIS SACRED MAJESTIES
MOST MIRACULOUS
Preservation
AFTER

THE BATTLE OF WORCESTER, &c.

It was in *June* in the year 1650. That CHARLES the Second, undoubted heir of CHARLES the First, of glorious memory, King of Great Britain, France, and Ireland, (after his Royal father had been barbarously murdered, and himself banished his own dominions, by his own rebellious subjects) took shipping

at *Scheevling* in *Holland*, and, having escap'd great dangers at sea, arrived soon after at *Spey* in the North of *Scotland*.

On the first of January following, his Majesty was crown'd at *Scoon*, and an army raised in that kingdome, to invade this; in hope to recover his regalities here, then most unjustly detain'd from him, by some members of the *Long Parliament*, and *Oliver Cromwell* their general; who soon after most traiterously assum'd the title of *Protector* of the new minted Commonwealth of England, Scotland and Ireland.

The first of August 1651. his Majesty with his army began his march into England, and on the fifth of the same month, at his Royal Camp, at *Woodhouse* near the Border, publish'd his gracious declaration of general pardon and oblivion, to all his loving subjects of the kingdom of England and dominion of Wales, that would desist from assisting the *usurped* authority of the pretended Commonwealth of England, and return to their obedience. Except only Oliver Cromwell, Henry Ireton, John Bradshaw, John Cook, and all others, who did actually sit and vote in the murder of his royal father.

His Majesty, after the publication of this gracious offer, march'd his army into Lancashire, where he received some considerable supplies from the *Earl of Darby* (that loyal subject,) and at Warrington Bridge met with the first opposition made by the rebels in England, but his Majesties presence soon put them to flight.

In this interim his Majesty had sent a copy of his declaration, enclosed in a gracious letter to the Lord *Mayor* and *Aldermen* of the city of London, which, by order of the usurpers then sitting at Westminster, was (on the 26. of August) publickly burnt at the Old Exchange by the Hangman; and their declaration proclaimed there and at Westminster, by beat of drum and sound of trumpet; by which his sacred Majesty, (to whom they could afford no better title than *Charles Stuart*,) his abettors, agents and complices, were declared traytors, rebels and publique enemies.—Impudence and treason beyond example!

After a tedious march, his Majesty with his army arriv'd at Worcester on the 22. of August, (being near three hundred miles from S. *Johnstons* in Scotland,) having left the Earl of Darby in Lancashire, as well to settle that and the adjacent counties in a posture of defence, against Cromwell and his confederates; as to raise some auxiliary forces to recruit his Majesties army, in case the successe of a battle should not prove so happy as all good men desired.

But (such was Heavens decree) on the 25. of August, the Earl's new rais'd forces were totally defeated near Wiggan in that county by Col. Lilburn, with a regiment of sectaries. In which conflict the Lord Widdrington, Sir Thomas Tildesley, Colonel Trollop, Lieutenant Colonel Galliard, (faithful subjects and valiant souldiers) with some others of good note, were slain, Col. Roscarrock wounded, Sir William Throckmorton, Sir Timothy Fetherstonhaugh, (who was afterwards beheaded by the rebels,) Colonel Baines and others taken prisoners, and their General the Earl of Derby forced to fly to save his life; In which flight he made a sad choice of the way towards Worcester, whither he knew his Majesties army was design'd to march.

After some days my Lord, with Colonel Roscarrock and two servants, got into the confines of Staffordshire and Shropshire near Newport, where at one Mr. Watsons house he met with Mr. *Richard Snead* (an honest gentleman of that country, and of his Lordship's acquaintance,) to whom he recounted the misfortune of his defeat at Wiggan, and the necessity of his taking some rest, if Mr. Snead could recommend his Lordship to any private house near hand, where he might safely continue, till he could find an opportunity to goe to his Majesty.

Mr. Snead brought my Lord and his company to *Boscobel-house*, a very obscure habitation, situate in Shropshire, but adjoyning upon Staffordshire, and lies between Tong-castle and Brewood. John Giffard, Esq. having built this house about thirty years since, invited Sir Basil Brook with other friends and neighbors to a house-warming feast; at which time Sir Basil was desired by Mr. Giffard to give the house a name, He aptly call's it BOSCOBEL

(from the Italian *bosco bello*, which in that language signifies *fair wood*) because seated in the midst of many fair woods. It is now the inheritance of Mr. Basil Fitzherbert, by Jane his wife, daughter and heir of Mr. John Cotton, by Frances, daughter and heir of the said John Giffard.

At this place the Earl arrived on the 29. of August (being Friday at night,) but no body was found at home, except William Penderel, the house-keeper and his wife, who, to preserve so eminent a person, adventur'd to receive my Lord, and kept him in safety till Sunday night following, when (according to my Lords desire of going to Worcester,) he convey'd him to Mr. Humphry Elliots house at Gataker Park, (a true hearted royalist,) which was about nine miles on the way from Boscobel thither. Mr. Elliot did not onely freely entertain the Earl, but lent him ten pounds, and conducted him and his company safe to Worcester.

The next day after his Majesty arrival at Worcester, being Saturday the 23. of August, he was proclaimed King of Great Britain, France and Ireland, by Mr. Thomas Lisens Mayor, and Mr. James Bridges Sheriff of that loyal city, with great acclamations.

On the same day his Majesties sent abroad a declaration, given at his city of Worcester, summoning, upon their alleageance, all the neighboring nobility, gentry and others, from sixteen to sixty, to appear in their persons and with horse and armes at *Pitchcroft* on the Tuesday following, where his Majesty would be present.

Upon Sunday 24. August, Mr. Crosby (an eminent divine of that city,) preach'd before his Majesty in the Cathedral Church; and in his prayer styl'd his Majesty *Supreme Head over all persons in his Dominions*: At which some of the *Scots* took exception, and Mr. Crosby was afterwards admonish'd to forbear such expressions.

Tuesday the 26. of August was a Rendevouz in Pitchcroft neer the city, of such loyal subjects of that and the adjacent counties as would come in to his Majesties aid; Here appeared Francis Lord Talbot (now Earl of Shrewsbury) with about sixty horse; Mr. Mervin Touchet, Sir John Packington, Sir Walter

Blount, Sir Ralph Clare, Mr. Ralph Sheldon of Beoly, Mr. John Washburn of Witchingford, with forty horse, Mr. Thomas Hornyold of Blackmore Park, with forty horse, Mr. Thomas Acton, Mr. Rob. Blount of Kenswick, Mr. Rob. Wigmore of Lucton, Mr. Francis Knotsford, Mr. Peter Blount and divers others. Notwithstanding which access, the number of his Majesties army both *English and Scots*, was conceiv'd not to exceed 12000. men, (viz.) ten thousand Scots and about 2000. English, and those too not excellently arm'd, nor plentifully stored with ammunition.

Mean time Cromwell (that grand patron of sectaries) had amass'd together a numerous body of rebels, commanded by himself in chief, and by the Lord Grey of Groby, Fleetwood & Lambert under him, consisting of above thirty thousand men, (being generally the scum and froth of the whole kingdome;) One part of which were sectaries, who through a fanatique zeal, were become devotes to this great *idol*; the other part seduc'd persons, who either by force or fear were unfortunately made actors or participants in this so horrible and fatal a tragedy.

Thus then began the pickeerings to the grand engagement. Major General Massey with a commanding party, being sent by his Majesty to secure the bridge and pass at *Upton* upon *Severn*, 7 miles below Worcester. On Thursday the 28. of August, Lambert with a far greater number of rebels attaq'd him, and after some dispute gain'd the pass, the river being then fordable. Here the Major General behav'd himself very gallantly, receiv'd a shot in the hand from some musketiers the enemy had placed in the church, and retreated in good order to Worcester.

During this encounter, Cromwell himself, (whose head-quarter was the night before at *Pershore*,) advanc'd to *Stoughton* within 4. miles of the city on the southside, and that evening a party of his horse faced it.

The next day (August the 29.) the Sultan appear'd with a great body of horse and foot on *Redhil* within a mile of Worcester, where he made a *Bonnemine*, but attempted nothing; and that night his head-quarters were at Judge Berkleys house at *Speachley*.

Saturday (August 30.) it was resolv'd by his Majesty, at a council of war, to give the enemy a *Camisado*, by beating up his quarters that night with 1500. select horse and foot, commanded by Major General Middleton, and Sir William Keyth; all of them wearing their shirts over their armor for distinction; which accordingly was attempted, and might in all probability have been successful, had not the design been most traiterously discover'd to the rebels by one *Guyes*, a tailor in the town, who was hang'd afterwards as the just reward of his treachery: In this action Major Knox was slain and some few taken prisoners.

A considerable party of the rebels commanded by Col. Lambert, Col. Ingoldsby, (not yet a convert) and Col. Gibbons being got over the Severn at Upton, march'd the next day to *Powick Town*, where they made an halt; for *Powick bridge*, lying upon the river *Team* (between Powick Town & Worcester,) was guarded by a Brigade of his Majesties horse and foot, commanded by Major General Robert Montgomery, and Col. George Keyth.

The fatal 3. of September being come, his Majesty this morning holds a council of war upon the top of the Colledge-church-steeple, the better to discover the enemies posture; Here his Majesty observ'd some firing at Powick and Cromwell making a bridge of boats over Severn under Bunshill, a mile below the city towards Team mouth; his majesty presently goes down, commands all to their arms, and marches in person to Powick bridge to give orders, as well for maintaining that bridge, as for opposing the making the other of boats, and hasted back to his army in the city.

Soon after his Majesty was gone from Powick bridge, the enemy assaulted it furiously, which was well defended by Montgomery, till himself was dangerously wounded, and his ammunition spent, so that he was forced to make a disorderly retreat into Worcester; and Col. Keyth was taken prisoner at the bridge.

At the same time Cromwell had with much celerity finisht his bridge of boats and plancks over the main river, without any considerable opposition,

whereby he might communicate with those of his party at Powick bridge, and was the first man that led the rest over, and then went back himself and rais'd a battery of great guns against the Fort-royal on the South-side the city.

His Majesty being returned from Powick bridge, march'd, with the Duke of Buckingham and some of his cavalry, through the city, and out at Sudbury gate by the Fort-royal, where the rebels great shot came frequently near his sacred person.

By this time Cromwell was got to an advantageous post at *Perry wood* within a mile of the city, swelling with pride and confident in the numbers of his men; but Duke Hamilton (formerly Lord Lanerick,) with his own troop and some Highlanders, Sir Alexander Forbus with his regiment of foot, and divers English lords and gentlemen voluntiers, by his Majesties command and encouragement, engaged him, and did great execution upon his best men, forced the great *sultan* (as the *Rhodians* in like case did the *Turk*) to retreat with his *Janizaries*, and were once masters of his great guns.

Here his Majesty gave an incomparable example of valor to the rest, by charging in person, which the Highlanders, especially imitated in a great measure, fighting with the but-ends of their muskets, when their ammunition was spent; but new supplies of rebels being continually poured upon them, and the Scotch horse not coming up in due time from the town to his Majesties relief, his army was forced to retreat in at Sudbury gate in much disorder.

In this action Duke Hamilton (who fought valiantly) was mortally wounded, of which he dyed within few days; Sir John Douglas also received his deaths wound, and Sir Alexander Forbus was shot through both the calves of his legs, lay in the wood all night, and was brought a prisoner to Worcester the next day.

The rebels in this encounter had great advantage as well in their numbers, as by fighting both with horse and foot, against his Majesties foot only, the greatest part of his horse being wedg'd up in the town; and when the foot

were defeated, a part of his Majesties horse afterwards fought against both the enemies horse and foot, upon great disadvantage.

At Sudbury gate a cart loaden with ammunition was overthrown, and lay cross the passage of the gate, so that his Majesty could not ride into the town, but was forc'd to dismount and come in on foot.

In the Friers street, his Majesty put off his armor, (which was heavy and troublesome to him,) and took a fresh horse, and then perceiving many of his foot-soldiers begin to throw down their arms and decline fighting; his Majesty rode up and down among them, sometimes with his hat in his hand, entreating them to stand to their arms and fight like men, other whiles encouraging them; but seeing himself not able to prevail, said, *I had rather you would shoot me, then keep me alive to see the sad consequences of this fatal day*: Such was the magnanimity of this prophetic King.

During this hot engagement at Perry-wood and Red-hil, the rebels on the other side the water possess'd themselves of S. Johns, and those of his Majesties army that were there, without any great resistance laid down their arms and submitted to mercy.

When some of the enemy were entred, and entring the town both at the Key, Castle hill, and Sudbury gate, without any conditions; Th' Earl of Cleveland, Sir James Hamilton, Col. William Carlis (then Major to the Lord Talbot) Capt. Tho. Hornyold, Capt. Tho. Giffard, and Capt. Richard Kemble, (Captain Lieutenant to the Lord Talbot) rallied what force they could (though inconsiderable to the Rebels numbers,) and charg'd the enemy very gallantly at Sudbury gate and in the street of that name: Here Sir James and Capt. Kemble were desperately wounded, and others slain; yet this action did much secure his Majesties march out at S. Martins gate, who had otherwise been in danger of being taken in the town.

About the same time Colonel Drummond with a party of Scots maintain'd the Castle hill with much resolution, till such time as conditions were agreed on for quarter; So that the rebels, having at last subdued all their

opponents, fell to plundering the city unmercifully, few or none of the citizens escaping, but such as were sectaries and of their party.

When his Majesty saw no hope of rallying his thus discomfited foot, he march'd out of Worcester at S. Martins gate, about six of the clock in the evening with his main body of horse, as then commanded by General David Lesley, but were now in some confusion.

The foot consisting most of Scots were almost all either slain or taken, and such of them (who in the battle escap'd death,) liv'd longer to dye for the most part more miserably; many of them being afterwards knock'd o'the head by country people, some bought and sold like slaves for a small price, others went begging up and down, till charity failing them, their necessities brought upon them diseases, and diseases death.

Before his Majesty was come to Barbon's bridge, about half a mile out of Worcester, he made several stands, faced about and desired the Duke of Buckingham, Lord Wilmet, and other of his commanders, that they might rally and try the fortune of war once more. But at the bridge a serious consultation was held, and then perceiving many of the troopers to throw off their arms and shift for themselves, they were all of opinion, the day was irrecoverably lost, and that their only remaining work was to save his Majesty from those ravenous wolves and regicides; Whereupon his Majesty, by advise of his council resolv'd to march for Scotland.

Immediately after this result, the Duke ask'd the Lord Talbot, if he could direct the way Northwards, his Lordship answer'd, that he had one *Walker* in his troop (former Scoutmaster to Col. Sands) that knew the way well; who was accordingly call'd to be the guide, and perform'd that duty for some miles; but being come to Kinver heath, not far from Kidderminster, and day-light being gone, Walker was at a puzzle in the way.

Here his Majesty made a stand, and consulted with the Duke, Earl of Derby, Lord Wilmot, &c. whether he might march at least to take some hours rest; The Earl of Derby told his Majesty, that in his flight from Wiggan to Worcester, he had met with a perfect honest man, and a great convenience

of concealment at Boscobel house (before mentioned,) but withall acquainted the king, it was a recusants house. And it was suggested, that those people (being accustomed to persecution and searches) were most like to have the readiest means and safest contrivances to preserve him; His Majesty therefore resolv'd to goe thither.

The Lord Talbot being made acquainted with his Majesties resolution, and finding Walker dubious of the way, called for Mr. Charles Giffard, (a faithful subject, and of the noble family of Chillington) to conduct his Majesty towards Boscobel, which office Mr. Giffard willingly undertook, having one *Yates* a servant with him, very expert in the wayes of that countrey; and being come neer *Sturbridge*, it was under consideration whether his Majesty should march through that town or no, and resolved in the affirmative, and that all about his person should speak French, to prevent any discovery of his Majesties presence.

Mean time Lesley, with the Scottish horse, had, in the close of the evening, taken the more direct way Northward by Newport, his Majesty being left only attended by the Duke of Buckingham, Earl of Derby, Earl of Lauderdale, Lord Talbot, Lord Wilmot, Colonel Thomas Blague, Colonel Edward Roscarrock, Mr. Marmaduke Darcy, Mr. Richard Lane, Mr. William Armorer, (since Knighted) Mr. Hugh May, Mr. Charles Giffard, Mr. Peter Street, and some others, in all about sixty horse.

At a house about a mile beyond Sturbridge, his Majesty drank and eat a crust of bread, the house affording no better provision; and as his Majesty rode on, he discoursed with Col. Roscarrock touching Boscobel-house, and the security which the Earl of Darby and he found at that place.

Upon further consideration by his Majesty and council, and to the end the company might not know whither his Majesty directly intended, Mr. Giffard was required to conduct his Majesty to some house neere Boscobel, the better to blind the design of going thither: Mr. Giffard proposed *Whiteladies* (another seat of the Giffards) lying about half a mile beyond Boscobel, and 26. miles from Worcester, and still retains its ancient name of Whiteladies,

from its having formerly been a monastery of Cistercian nuns, whose habit was of that colour.

His Majesty and his retinue (being safely conducted to Whiteladies by Mr. Giffard) alighted, now, as they hop'd out of danger of any present surprise by pursuit; George Pendrel (who was a servant in the house) opened the Doors, and after his Majesty and the Lords were entered the house, his Majesties horse was brought into the hall, and by this time it was about break of day on Thursday morning: Here every one was in a sad consult how to escape the fury of blood-thirsty enemies, but the greatest solicitude was to save the king, who was both hungry and tired with this long and hasty march.

Col. Roscarrock presently caused *Barthol. Martin* (a boy in the house) to be sent to Boscobel for William Penderel, and Mr. Charles Giffard sent also for Richard Penderel, who lived near hand at Hobbal Grange, they both came forthwith to Whiteladies, and were brought into the parlour to the Earl of Derby, who immediately took them into the inner parlour, where the king was, and told William Penderel in particular, *This is the king* (pointing at his Majesty), *thou must have a care of him, and preserve him as thou didst me*; to which commands William yielded ready obedience, and Mr. Giffard did also much conjure Richard to have an especial care of his charge.

Whilst William and Richard were thus sent for, his Majesty had been advised to rub his hands on the back of the chimney, and with them his face, in order to a disguise, and some person had cut off his locks of hair: His Majesty, having put off his blue ribband, buff-coat, and other princely ornaments, put on a noggen course shirt of *Edward Martins*, who lived in the house, and Richard Penderels green suit, and leather doublet, but had not time to be so exactly disguised as he was afterwards; for both William and Richard Penderel did advertise the company to make haste away, in regard there was a troop of rebels commanded by Colonel Ashenhurst, quartered at Cotsal, but three miles distant; some of which troop came to the house within half an hour after the company were gone.

Richard Penderel conducted the king out at a back dore, unknown to most of the company, (except some of the Lords and Colonel Roscarrock, who waited on his Majesty into the backside, and there with sad hearts took leave of him) and carried him into an adjacent wood belonging to Boscobel, call'd Spring Coppice, about half a mile from Whiteladies; William, Humphrey and George scouting abroad, and bringing what news they could learn to his Majesty in the wood, as occasion required.

His Majesty being thus, as they hoped, in a way of security, the Duke, Earl of Derby, Earl of Lauderdale, Lord Talbot and the rest (having for their guide Mr. Charles Giffard, and being then not above 40. horse, of which number his Majesties pad-nag was one, rode by Mr. Richard Lane, one of the groom's of his Majesties bed-chamber) march'd from Whiteladies Northward by the way of Newport, in hope to overtake or meet General Lesley with the main body of Scotch horse.

As soon as they were got into the road, the Lord Leviston (who commanded his Majesties life guard) overtook them, pursued by a party of rebels, the Lords with their followers faced about and repeld them; but when they came a little beyond Newport, some of Lilburn's men met them in the front, other rebels from Worcester pursued them in the rear, themselves and horses being sufficiently tired, the Earl of Derby, Earl of Lauderdale, Mr. Charles Giffard and some others, were taken and carried prisoners, first to Whitchurch, and from thence to an inn in *Bunbury*, where Mr. Giffard found means to make an escape; but the noble Earl of Derby was carried to Westchester, and there tryed by a pretended court martial, held the first of October 1651. by vertue of a commission from Cromwell, grounded on an execrable rumpact, of the 12. of August then last past, the very title whereof cannot be mentioned without horror, but it pretended most traiterously to *prohibit correspondence with CHARLES STUART* (their lawful sovereign) *under penalty of high treason, loss of life and estate*—Prodigious Rebels!

In this black tribunal there sate, as judges, these persons, and under these titles:

Col. Humphry Mackworth (*who was plac'd in the Sella Curulis*)
President.

Major General Mitton.

Col. Robert Duckenfield.

Col. Henry Bradshaw.

Col. Thomas Croxton.

Col. George Twisleton.

Lieu. Col. Henry Birkinhead.

Lieu. Col. Simon Finch.

Lieu. Col. Alex. Newton.

Capt. James Stepford.

Capt. Samuel Smith.

Capt. John Downes.

Capt. Vincent Corbet.

Capt. John Delves.

Capt. John Griffith.

Capt. Tho. Portington.

Capt. Edward Alcock.

Capt. Ralph Pownall.

Capt. Richard Grantham.

Capt. Edward Stelfax.

This was the authority, and some of these the persons that condemned this noble Earl to death, notwithstanding his just plea, *That he had quarter given him by one Captain Edge, who took him prisoner.* But this could not obtain justice, nor any intercession, mercy; so that on the 15. of October, he was executed at Boulton in Lancashire, in a most barbarous and inhumane manner.

The Earl of Lauderdale with divers others were carryed prisoners to Windsor castle, where they continued many years.

Whilst the rebels were plundering these noble persons, the Duke, with the Lord Levistan, Col. Blague, Mr. Marmaduke Darcy, and Mr. Hugh May, forsook the road, and betook themselves to a by-way and got into *Chessardine* woods, not far from Newport, where they receiv'd some refreshment at a little obscure house, and afterwards met with two honest

laborers in an adjoining wood, to whom they communicated the exigent and distresse which the fortune of war had reduc'd them to, and finding them like to prove faithful, the duke thought fit to imitate his royal master, quitted his horse, delivered his *George* (which was given him by the Queen of England) to *Mr. May* (who preserved it through all difficulties, and after restor'd it to his Grace in Holland) and chang'd habit with one of the workmen; and in this disguise was convey'd by one *Nich. Mathews* a carpenter, to the house of *Mr. Hawley* an hearty cavalier at *Bilstrop* in Nottinghamshire, from thence to the *Lady Villiers* house at *Brooksby* in Leicestershire, and, after many hardships and encounters, his Grace got secure to London, and from thence to his Majesty in *France*.

At the same time the Lord Leviston, Col. Blague, Mr. Darcy, and Mr. May, all quitted their horses, severally shifted for themselves, and most of them, through various dangers and sufferings, contriv'd their escapes; In particular Mr. May lay 21. days in a hay-mow belonging to one *Bold* an honest husbandman, who liv'd neer Chessardine; Bold having all that time rebel-souldiers quartered in his house, yet faild not to give a constant relief to his more welcom guest, and when the coast was clear of souldiers, Mr. May came to London on foot in a disguise.

The Lord Talbot, (seeing no hope of rallying,) hasted towards his fathers house at Longford neer Newport, where being arriv'd, he convey'd his horse into a neighbours barn, but was immediately pursued by the rebels, who found the horse saddled, and by that concluded my Lord to be not far off, so that they search'd Langford house narrowly, and some of them continued in it four or five dayes; during all which time my Lord was in a close place in one of the outhouses, almost stifl'd for want of air, and had infallibly perish'd for want of food, had he not been once relieved in the dead of night, and with much difficulty by a servant; yet his Lordship thought it a great providence, even by these hardships, to escape the fury of such enemies, who sought the destruction of the nobility, as well as of their king.

In this interim the valiant Earl of Cleveland, (who being above 60. years of age, had marched 21. days together upon a trotting horse) had also made his

escape from Worcester, when all the fighting work was over, and was got to *Woodcot* in Shropshire, whither he was pursued, and taken at one Miss Broughtons house.

The Scotch cavalry (having no place to retreat unto neerer then Scotland,) were soon after totally dispersed, and most of them taken by the rebels and country people in Cheshire, Lancashire, and parts adjacent.

Thus was this royal army totally subdued, thus dispersed; and if in this so important affair any of the Scottish commanders were treacherous at Worcester, (as some suspected) they have a great account to make for the many years miseries that ensued thereby to both nations, under the tyrannical government of Cromwell.

But to return to the duty of my attendance on his Sacred Majesty in Spring Coppice; by that time Richard Penderel had conveyed him into the obscurest part of it, it was about sun-rising on Thursday morning, and the heavens wept bitterly at these calamities; insomuch as the thickest tree in the wood was not able to keep his Majesty dry, nor was there any thing for him to sit on; Wherefore Richard went to *Francis Yates* house, (a trusty neighbour, who married his wifes sister,) where he borrowed a blanket, which he folded and laid on the ground for his Majesty to sit on.

At the same time Richard spoke to the goodwife Yates, to provide some victuals, and bring it into the wood at a place he appointed her, she presently made ready a mess of milk and some butter and eggs, and brought them to his Majesty in the wood; who being a little surpriz'd to see the woman (no good concealer of a secret,) said cheerfully to her; *Good woman, can you be faithfull to a distressed cavalier?* She answered, *Yes, sir, I will dye rather than discover you;* with which answer his Majesty was well satisfied.

The Lord Wilmot in the interim took John Penderel for his guide, but knew not determinately whither to goe, purposing at first to have march'd Northwards, but as they passed by Brewood forge, the forgermen made after them, till being told by one Richard Dutton, that it was Col. Crompton

whom they pursued, the *Vulcans* happily, upon that mistake, quitted the chase.

Soon after they narrowly escaped a party of rebels as they passed by *Covenbrook*; so that seeing danger on every side, and John meeting with William Walker (a trusty neighbour,) committed my Lord to his care and council, who for present conveyed them into a dry marl-pit (where they staid awhile,) and afterward to one *Mr. Huntbaches* house at Brinsford, and put their horses into John Evans barn, whilst John Penderel goes to Wolverhampton to see what convenience he could find for my Lords coming thither, but met with none, the town being full of souldiers.

Yet John leaves no means unessayed, hastens to Northcot, (an adjacent village) and there, whilst he was talking with *Goodwife Underhill* (a neighbour,) in the instant *Mr. John Huddleston* (a sojourner at *Mr. Thomas Whitgreaves* of *Moseley*, and of Johns acquaintance) was accidently passing by, to whom John (well assured of his integrity,) presently addresses himself and his business, relates to him the sad news of the defeat of his Majesties army at Worcester, and discovers in what straits and confusion he had left his Majesty and his followers at Whiteladies, and in particular that he had brought thence a person of quality, (for John then knew not who my Lord was) to Huntbaches house, who, without present relief, would be in great danger of being taken.

Mr. Huddleston goes home forthwith, takes John with him and acquaints Mr. Whitgreave with the businesse, who freely resolved to venture all, rather than such a person should miscarry.

Hereupon Mr. Whitgreave repaires to Huntbaches house, speaks with my Lord, and gives direction how he should be privately convey'd into his house at Mosely about ten of the clock at night; and, though it so fell out that the directions were not punctually observ'd, yet my Lord and his man were at last brought into the house, where Mr. Whitgreave, (after some refreshment given them) conveys them into a secret place, which my Lord admiring for its excellent contrivance, and solicitous for his Majesties

safety, said, *I would give a world my friend* (meaning the king) *were here*; and then deposited in Mr. Whitgreaves custody a little bag of jewels, which my Lord received again at his departure.

As soon as it was day Mr. Whitgreave sent William Walker with my Lords horses to his neighbour Col. John Lane of Bentley near Walsal, South-East from Mosely about four miles, (whom Mr. Whitgreave knew to be a right honest gentleman, and ready to contribute any assistance to so charitable a work) and wished Walker to acquaint the Colonel, that they were the horses of some eminent person about the king, whom he could better secure than his horses: The Col. willingly receives the horses, and sends word to Mr. Whitgreave to meet him that night in a close not far from Mosely, in order to the tender of farther service to the owner of the horses, whose name neither the Colonel nor Mr. Whitgreave then knew.

On Thursday night, when it grew dark, his Majesty resolv'd to go from those parts into *Wales*, and to take Richard Penderel with him for his guide; but, before they began their journey, his Majesty went into Richards house at Hobbal Grange, where the old goodwife Penderel had not onely the honour to see his Majesty, but to see him attended by her son Richard: Here his Majesty had time and means better to complete his disguise; his name was agreed to be *Wil. Jones*, and his arms a wood bill: In this posture about nine a clock at night (after some refreshment taken in the house) his Majesty, with his trusty servant Richard, began their journey on foot, resolving to go that night to *Madeley* in Shropshire, about five miles from *Whiteladies*, and within a mile of the river Severn, over which their way lay for Wales; in this village lived one Mr. Woolf, an honest gentleman of Richards acquaintance.

His Majesty had not been long gon, but the Lord Wilmot sent John Penderel from Mr. Whitegreaves to Whiteladies, to know in what security the king was, John returned and acquainted my Lord that his Majesty was marched from thence; Hereupon my Lord began to consider which way himself should remove with safety.

Col. Lane, having secured my Lords horses, and being come to Mosely according to appointment on Friday night, was brought up to my Lord by Mr. Whitgreave, and (after mutual salutation) acquainted him, that his sister Mrs. Jane Lane had by accident procured a pass from some commander of the rebels, for her self and a man to goe to Bristol to see her sister, then near her time of lying in; and freely offer'd, if his Lordship thought fit, he might make use of it, which my Lord seem'd inclinable to accept; and on Saturday night was conducted by Col. Lanes man (himself not being well) to the Col. house at Bentley, his Lordship then and not before discovering his name to Mr. Whitgreave, and giving him many thanks for so great a kindnesse in so imminent a danger.

Before his Majesty came to Madely, he met with an ill-favoured encounter at *Evelin Mill* being about 2. miles from thence; The miller (it seems) was an honest man, but his Majesty and Richard knew it not, and had then in his house some considerable persons of his Majesties army, who took shelter there in their flight from Worcester, and had not been long in the mill, so that the miller was upon his watch, and Richard, unhappily permitting a gate to clap, through which they passed, gave occasion to the miller to come out of the mill and boldly ask *who is there?* Richard, thinking the miller had pursued them, quitted the usuall way in some haste, and led his Majesty over a little brook, which they were forced to wade through, and which contributed much towards the surbating and galling his Majesties feet. Here his Majesty (as he afterwards pleasantly observed) was in some danger of losing his guide, but that the rustling of Richards calves-skin breeches was the best direction his Majesty had to follow him in that dark night.

His Majesty arrived at Madely about midnight, Richard goes to Mr. Woolfs house, where they were all in bed, knocks them up and acquaints Mr. Woolfs daughter, (who came to the dore) that the king was there, who presently received him into the house, where his Majesty refreshed himself for some time; but, understanding that the rebels kept several guards upon *Seavern*, and it being fear'd that some of their party (of which many frequently passed through the town,) might quarter at the house (as had often hapned,) it was apprehended unsafe for his Majesty to lodge in the

house (which afforded no secret place for concealment,) but rather to retire into a barn near adjoining, as less liable to the danger of a surprise, whither his Majesty went accordingly, and continued there all the day following, his servant Richard attending him.

During his Majesties stay in the barn, Mr. Woolf had often conference with him about his intended journey, and in order thereto took care by a trusty servant (sent abroad for that purpose,) to inform himself more particularly of those guards upon Seavern, and had certain word brought him, that not only the bridges were secured, but all the passage-boats seized on; insomuch as he conceived it very hazardous for his Majesty to prosecute his design for Wales, but rather to go to Boscobel-house, being the most retired place for concealment in all the country, and to stay there till an opportunity of a further safe conveyance could be found out; which advice his Majesty inclined to approve: And thereupon resolv'd for Boscobel the night following; in the mean time his hands not appearing sufficiently discoloured, suitable to his other disguise, Mrs. Woolf provided walnut-tree leaves, as the readiest expedient for that purpose.

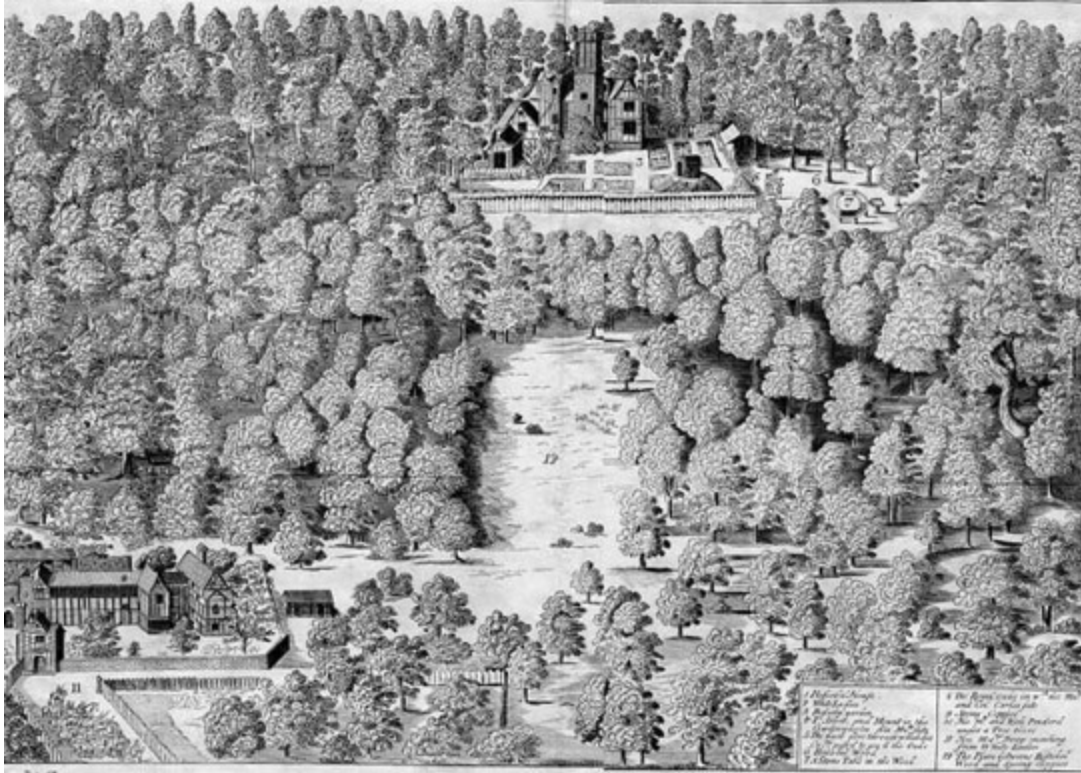
The day being over, his Majesty adventured to come again into the house, where having for some time refreshed himself, and being furnished with conveniences for his journey, (which was conceived to be safer on foot than by horse) he with his faithful guide Richard about eleven of the clock at night, set forth towards Boscobel.

About three of the clock on Saturday morning, being come near the house, Richard left his Majesty in the wood, whilst he went in to see if no souldiers were there or other danger; where he found *Col. William Carlis*, (who had seen, not the last man born, but the last man kild, at Worcester, and) who, having with much difficulty, made his escape from thence; was got into his own neighbor-hood, and, for some time concealing himself in Boscobel wood, was come that morning to the house to get some relief of William Penderel, his old acquaintance.

Richard having acquainted the Col. that the king was in the wood, the Col. with William and Richard goe presently thither to give their attendance, where they found his Majesty sitting on the root of a tree, who was glad to see the Col. and came with them into the house, and did there eat bread and cheese heartily, and (as an extraordinary) William Penderels wife made his Majesty a posset, of thin milk and small beer, and got ready some warm water to wash his feet, not onely extreme dirty, but much galled with travail.

The Col. pull'd off his Majesties shoos, which were full of gravel, and stockens which were very wet, and there being no other shoos in the house that would fit his Majesty, the good wife put some hot embers in those to dry them, whilst his Majesties feet were washing and his stockens shifted.

Being thus a little refreshed, the Col. perswaded his Majesty to go back into the wood (supposing it safer then the house,) where the Colonel made choice of a thick leafed oak, into which William and Richard help'd both the King and the Col. and brought them such provision as they could get, with a cushion for his Majesty to sit on; In this oak they continued most part of that day, and the Col. humbly desired his Majesty (who had taken little or no rest the two preceding nights,) to seat himself as easily as he could in the tree, and rest his head on the Colonels lap, who was watchfull that his Majesty might not fall; and in this posture his Majesty slumber'd away some part of the day, and bore all these hardships and afflictions with incomparable patience.



In the evening they returned to the house, where William Penderel acquainted his Majesty with the secret place, wherein the Earl of Derby had been secured, which his Majesty liked so well, that he resolved, whilst he staid there to trust onely to that, and go no more into the royal oake, as from hence it must be cal'd, where he could not so much as sit at ease.

His Majesty now, esteeming himself in some better security, permitted William Penderel to shave him, and cut the hair of his head, as short at top as the scissars would do it, but leaving some about the ears, according to the country mode; Col. Carlis attending, told his Majesty, *Will was but a mean barber*; To which his Majesty answered, *He had never been shav'd by any barber before*: The King bade William burn the hair which he cut off, but Will, was only disobedient in that, for he kept a good part of it, wherewith he has since pleasur'd some persons of honor, and is kept as a civil relique.

Humphry Penderel was this Saturday design'd to goe to *Shefnal*, to pay some taxes to one *Captain Broadway*; At whose house he met with a

Colonel of the rebels, who was newly come from Worcester in pursuit of the King, and who being inform'd the King had been at Whiteladies, and that Humphry was a near neighbor to the place, examin'd him strictly, and laid before him as well the penalty for concealing the King, which was death without mercy; as the reward for discovering him, which should be one thousand pounds certain pay, but neither fear of punishment, nor hope of reward, was able to tempt Humphry into any disloyalty; He pleaded ignorance and was dismiss'd; and on Saturday night related to his Majesty and the loial Colonel at Boscobel, what had pass'd betwixt him and the rebel Colonel at Shefnal.

This night the good wife (whom his Majesty was pleased to call *My Dame Joan* [4]) provided some chickens for his Majesties supper, (a dainty he had not lately been acquainted with,) and a little pallet was put into the secret place for his Majesty to rest in; some of the brothers being continually upon duty, watching the avenues of the house and the road way, to prevent the danger of a surprize.

After supper Col. Carlis ask'd his Majesty what meat he would please to have provided for the morrow, being Sunday, his Majesty desired some mutton, if it might be had; But it was thought dangerous for William to goe to any market to buy it, since his neighbors all knew he did not use to buy such for his own dyet, and so it might beget a suspicion of his having strangers at his house; But the Col. found another expedient to satisfy his Majesties desires; Early on Sunday morning he repairs to Mr. William Stauntons sheep cote, who rented some of Boscobel grounds, here he chose one of the best sheep, sticks him with his dagger, then sends Wil. for the mutton, who brings him home on his back.

On Sunday morning (Sept. the seventh) his Majesty got up early (his dormitory being none of the best, nor his bed the easiest,) and near the secret place where he lay, had the convenience of a gallery to walk in, where he was observ'd to spend some time in his devotions, and where he had the advantage of a window, which surveid the road from Tong to Brewood; Soon after his Majesty coming down into the parlor his nose fell

a bleeding, which put his poor faithful servants into a great fright, but his Majesty was pleased soon to remove it, by telling them, It often did so.

As soon as the mutton was cold, William cut it up and brought a leg of it into the parlor, his Majesty cal'd for a knife and a trencher, and cut some of it into collops and prick'd them with the knif's point, then cal'd for a frying pan and butter, and fry'd the collops himself, of which he ate heartily, Col. Carlis the while being but under cook, (and that honor enough too,) made the fire and turn'd the collops in the pan.

When the Colonel afterwards attended his Majesty in *France*, his Majesty calling to remembrance this passage, among others, was pleased merrily to propose it, as a problematical question, whether himself or the Col. were the master-cook at Boscobel; and the supremacy was of right adjudg'd to his Majesty.

All this while the other brothers of the Penderels were in their several stations, either scouting abroad to learn intelligence, or upon some other service; but it so pleas'd God, that though the soldiers had some intelligence that his Majesty had been at Whiteladies, and none that he was gone thence, yet this house (which prov'd a happy sanctuary for his Majesty in this sad exigent,) had not at all been searched during his Majesties abroad there, though that had several times, this perhaps the rather escaping, because the neighbors could truly inform none but poor servants to be here.

His Majesty, finding himself now in a hopefull security, spent some part of this Lords-day in a pretty arbor in Boscobel garden, which grew upon a mount, and wherein there was a stone table and seats about it. In this place he pass'd away some time in reading, and commended the place for its retiredness.

His Majesty, understanding by John Penderel, that the Lord Wilmot was at Mr. Whitgreaves, (for John knew not of his remove to Bentley,) was desirous to let my Lord know where he was, and in what security.

To this end John Penderel was sent on Sunday morning to Mosely; But John, finding my Lord remov'd thence, was much troubled, and then acquainted Mr. Whitgreave and Mr. Huddleston, that his Majesty was return'd to Boscobel, and the disaccommodation he had there; whereupon they both resolve to goe with John to Bentley, where having gain'd him an access to my Lord, his Lordship design'd to attend the King that night at Mosely, and desired Mr. Whitgreave to meet his Lordship at a place appointed about 12 of the clock, And Mr. Huddleston to nominate a place where he would attend his Majesty about one of the clock, the same night.

Upon this intelligence my Lord made stay of Mrs. Jane Lanes journey to Bristoll, till his Majesties pleasure were known.

John return'd to Boscobel in the afternoon with intimation of this design'd meeting with my Lord at *Mosely* that night, and the place which was appointed by Mr. Huddleston, where his Majesty should be expected. But his Majesty, having not recovered his late foot-journey to *Madely*, was not able without a horse, to perform this to *Mosely*, which was about five miles distant from Boscobel, and near the mid from thence to Bentley.

It was therefore concluded that his Majesty should ride upon Humphry Penderels mill-horse (for Humphry was the miller of Whiteladies mill). The horse was taken up from grass, and accoutr'd not with rich trappings or furniture, befitting so great a king, but with a pittiful old saddle and a worse bridle.

When his Majesty was ready to take horse, Col. Carlis humbly took leave of him, being so well known in the country, that his attendance upon his Majesty would in all probability have prov'd rather a disservice than otherwise, however his hearty praiers were not wanting for his Majesties preservation.

Thus then his Majesty was mounted, and thus he rode towards Mosely, attended by all the honest brothers, *William, John, Richard, Humphry*, and *George Penderel*, and *Francis Yates*, each of these took a bill or pike staff on his back, and some of them had pistols in their pockets, two march'd

before, one on each side his Majesties horse, and two came behind a loof off; their design being this, that in case they should have been question'd or encount'r'd but by five or six troopers or such like smal party, they would have shew'd their valor in defending, as well as they had done their fidelity in otherwise serving his Majesty: And though it was near midnight, yet they conducted his Majesty through by-ways, for better security.

After some experience had of the horse, his Majesty complain'd, *It was the heaviest dull jade he ever rode on*, to which (Humphry the owner of him) answer'd (beyond the usual notion of a miller,) *My Leige! Can you blame the horse to goe heavily, when he has the weight of three kingdoms on his back?*

When his Majesty came to *Penford Mill*, within two miles of *Mr. Whitgreaves* house, his guides desired him to alight and goe on foot the rest of the way, for more security, the foot way being the more privat and the nearer, and at last they arriv'd at the place appointed by *Mr. Huddleston*, (which was a little grove of trees in a close of *Mr. Whitgreaves* cal'd the Pit-leasow,) in order to his Majesties being privatly convey'd into *Mr. Whitgreaves* house; William, Humphry, and George, returned with the horse, the other three attended his Majesty to the house; but his Majesty, being gon a little way, had forgot (it seems) to bid farewell to William and the rest, who were going back, so he cal'd to them and said, *My troubles make me forget myself, I thank you all*, and gave them his hand to kiss.

The Lord Wilmot, in pursuance of his own appointment; came to the meeting place at his hour, where *Mr. Whitgreave* receiv'd him and conveyd him to his old chamber, but hearing nothing of the King at his prefixed time, gave occasion to suspect some misfortune might have befalln him, though the night was very dark and rainy, which might possibly be the occasion of so long stay; *Mr. Whitgreave* therefore leaves my Lord in his chamber, and goes to Pit-leasow, where *Mr. Huddleston* attended his Majesties coming, and about two hours after the time appointed his Majesty came, whom *Mr. Whitgreave* and *Mr. Huddleston*, convey'd, with much satisfaction into the house to my Lord, who expected him with great

solicitude, and presently kneel'd down and embraced his Majesties knees, who kiss'd my Lord on the cheek, and ask'd him earnestly, *what is become of Buckingham, Cleveland, and others?* To which my Lord could give little satisfaction, but hop'd they were safe.

My Lord (addressing himself to Mr. Whitgreave and Mr. Huddleston,) said, *though I have conceal'd my friends name all this while, now I must tell you, this is my master, your master, and the master of us all;* not knowing that they understood it was the King; Whereupon his Majesty was pleased to give his hand to Mr. Whitgreave and Mr. Huddleston to kiss, and told them he had receiv'd such an account from my Lord Wilmot of their fidelity, that he should never forget it; and presently ask'd Mr. Whitgreave, *where is your secret place?* which being shew'd his Majesty, he was pleas'd therewith, and returning into my Lords chamber, sate down on the bed-side, where his nose fell a bleeding; and then puld out of his pocket a handkercher, suitable to the rest of his apparel, both course and dirty.

His Majesties attire, as was before observ'd in part, was then a leather-doublet, a pair of green breeches, and a jump-coat (as the country calls it) of the same green, a pair of his own stockens with the tops cut off, because embroider'd, and a pair of stirrop stockens, which were lent him at Madely, a pair of old shoos, cut and slash'd to give ease to his feet, an old grey, greasy hat without a lyming, a noggen shirt, of the coarsest linnen, his face and hands made of a reechy complexion, by the help of the walnut tree leaves.

Mr. Huddleston observing the coursness of his Majesties shirt to disease him much and hinder his rest, ask'd my Lord, if the King would be pleased to change his shirt, which his Majesty condescended unto, and presently put off his course shirt and put on a flexen one of Mr. Huddleston's who pul'd off his Majesties shoos and stockens, and put him on fresh stockens, and dry'd his feet, where he found some body had innocently but indiscreetly put white paper, which, with going on foot from the place where his Majesty alighted to the house, was roll'd between his stockens and his skin, and serv'd to encrease rather than asswage the soariness of his feet.

Mr. Whitgreave had by this time brought up some biscuit and a bottle of sack, his Majesty ate of the one, and drank a good glass of the other; and, being thus refresh'd, was pleas'd to say cheerfully, *I am now ready for another march; and if it shall please God once more to place me in the head of but eight or ten thousand good men, of one mind, and resolv'd to fight, I shall not doubt to drive these rogues out of my kingdoms.*

It was now break of the day on Munday morning the eighth of September, and his Majesty was desirous to take some rest: In order whereto a palet was carried into one of the secret places, where his Majesty lay down, but rested not so well as his host desired, for the place was close and inconvenient, and they durst not adventure to put him into any bed in an open chamber.

After some rest taken in the hole, his Majesty got up, and was pleased to take notice of, and salute Mr. Whitgreaves mother, and (having his place of retreat still ready) sate between whiles in a closet over the porch, where he might see those that pass'd the road by the house.

Before the Lord Wilmot betook himself to his dormitory, he conferr'd with Mr. Whitgreave, and advised, that himself or Mr. Huddleston would be alwayes vigilant about the house, and give notice if any souldiers came, and (sayes this noble Lord) *If it should so fall out that the rebels have intelligence of your harbouring any of the Kings party, and should therefore put you to any torture for confession, be sure you discover me first, which may happily in such case satisfie them, and preserve the King.* This was the expression and care of a loyal subject, worthy eternal memory.

On Munday his Majesty and my Lord resolv'd to dispatch John Penderel to Col. Lane at Bentley, with direction for the Colonel to send my Lords horses for him that night about midnight, and to expect him at the usual place: My Lord accordingly goes to Bentley again that night, to make way for his Majesties reception there, in order to a resolution taken up by his Majesty to go Westward, under the protection of Mrs. Jane Lanes pass; it

being most probable, that the rebels wholly pursu'd his Majesty Northwards, and would not at all suspect him gone into the West.

This Munday afternoon *Mr. Whitgreave* had notice that some souldiers were in the neighbourhood intending to apprehend him, upon information that he had been at Worcester fight: The King was then laid down upon *Mr. Huddlestons* bed, but *Mr. Whitgreave* presently secures his *Royal Guest* in the secret place, and my Lord also, leaves open all the chamber dores, and goes boldly down to the souldiers, assuring them (as his neighbours also testified) that he had not been from home in a fortnight then last past; with which asseveration the souldiers were satisfied, and came not up stairs at all.

In this interval the rebels had taken a *Cornet* in *Cheshire*, who came in his Majesties troop to *Whiteladies*, and, either by menaces or some other way, had extorted this confession from him concerning the King, (whom these bloud-hounds sought with all possible diligence) that he came in company with his Majesty to *Whiteladies*, where the rebels conceived he might still be; whereupon they posted thither without ever drawing bit, almost kill'd their horses, and brought the faint-hearted prisoner with them.

Being come to *Whiteladies* on Tuesday, they call for *Mr. George Giffard*, who lived in an apartment of the house, present a pistol to his breast, and bad him confesse where the King was, or he should presently dye; *Mr. Giffard* was too loyal, and too much a gentleman to be frighted into any infidelity, resolutely denies the knowing any more, but that divers cavaliers came thither on Wednesday night, ate up their provision and departed, and that he was as ignorant who they were as whence they came, or whither they went, and beg'd, if he must dye, that they would first give him leave to say a few prayers: One of these villains answered, *If you can tell us no news of the King, you shall say no prayers*: But his discreet answer did somewhat asswage the fury of their leader, yet they searched every corner of the house, broak down much of the wainscoat, and at last beat their intelligencer severely for making them lose their labours.

During this Tuesday, in my Lord Wilmots absence, his Majesty was for the most part attended by Mr. Huddleston, Mr. Whitgreave being much abroad in the neighbourhood, and Mrs. Whitgreave below stairs, both inquisitive after news, and the motions of the soldiery, in order to the preservation of their Royal Guest; the old gentlewoman was this day told by a countrey man, who came to her house, that he heard the King, upon his retreat, had beaten his enemies at *Warrington bridge*, and that there were three Kings come in to his assistance; which story she related to his Majesty for divertisement, who smiling, answered, *Surely they are the three Kings of Colein come down from heaven, for I can imagine none else.*

His Majesty out of the closet window, espy'd two souldiers, who pass'd by the gate in the road, and told Mr. Huddleston, he knew one of them to be a *Highlander* and of his own regiment; who little thought his King and Colonel was so near.

And his Majesty for entertainment of the time was pleas'd to discourse with Mr. Huddleston the particulers of the battle of Worcester (the same in substance with what is before related.) And by some words which his Majesty let fall, it might easily be collected that his councils had been too often sooner discovered to the rebels, than executed by his loyal subjects.

Mr. Huddleston had under his charge young *Sir John Preston*, *Mr. Thomas Palyn* and *Mr. Francis Reynolds*, and on this Tuesday in the morning (the better to conceal his Majesties being in the house, and excuse his own more than usual long stay above stairs) pretended himself to be indisposed and afraid of the souldiers, and therefore set his schollers at several garret windows, that survey'd the roades, to watch and give notice when they saw any troopers coming; This service the youths perform'd very diligently all day, and at night, when they were at supper, Sir John cal'd upon his companions, and said (more truly than he imagin'd,) *Come lads, let us eat lustily, for we have been upon the life-guard to day.*

On Tuesday night between twelve and one of the clock, the Lord Wilmot sent Col. Lane to attend his Majesty to Bentley, Mr. Whitgreave meets the

Colonel at the place appointed, and brings him to the corner of his orchard, where the Colonel thought fit to stay, whilst Mr. Whitgreave goes in and acquaints the king that he was come: Whereupon his Majesty presently took his leave of Mrs. Whitgreave, saluted her and gave her many thanks for his entertainment, but was pleas'd to be more particular with Mr. Whitgreave and Mr. Huddleston, not onely by giving them thanks, but by telling them, he was very sensible of the dangers they might incur by entertaining him, if it should chance to be discover'd; Therefore his Majesty advis'd them to be very careful of themselves, and gave them direction to repair to a merchant in *London*, who should have order to furnish them with moneys and means of conveyance beyond sea, if they thought fit. However his Majesty concluded, that if it should please God ever to restore him to the government of his dominions, he should not be unmindful of their civilities and fidelity to him. Thus grateful was this *excellent King*, for even that which was every good subjects duty, and thus solicitous (in the midst of his own dangers), for their security.

After his Majesty had vouchsaf'd these gracious expressions to Mr. Whitgreave and Mr. Huddleston, they told his Majesty all the service they could now do him, was to pray heartily to Almighty God for his safety and preservation, and then kneeling down, his Majesty gave them his hand to kiss, and so went down stairs with them into the orchard, where Mr. Whitgreave both humbly and faithfully deliver'd his *great Charge* into Col. Lanes hands, telling the Colonel who the person was he there presented to him.

The night was both dark and cold, and his Majesties clothing thin, therefore Mr. Huddleston humbly offer'd his Majesty a cloak, which he was pleased to accept and wore to Bentley, from whence Mr. Huddleston afterward received it.

As soon as Mr. Whitgreave and Mr. Huddleston heard his Majesty was not onely got safe to Bentley, but march'd securely from thence, they began to reflect upon his advice, and, lest any discovery should be made of what had been acted at Mosely, they both absented themselves from home; The one

went to London, the other to a friends house in Warwickshire, where they liv'd privately till such time as they heard his Majesty was safely arriv'd in France, and that no part of the aforesaid transactions at *Mosely* had been discover'd to the rebels, and then return'd home.

This *Mr. Whitgreave* is descended of the ancient family of the Whitgreaves of Burton in the county of Stafford, and was first a *Cornet*, afterwards *Lieutenant* to *Capt. Tho. Giffard*, in the first war for his late Majesty.

Mr. John Huddleston is a younger brother of the renowned family of the house of *Hutton-John* in the county of Cumberland, and was a gentleman voluntier in his late Majesties service, first under *Sir John Preston* the elder, till *Sir John* was render'd unserviceable by the desperate wounds he received, and after under *Colonel Ralph Pudsey* at Newark.

His Majesty being safely convey'd to Bentley by Col. Lane, staid there but a short time, took the opportunity of Mrs. Janes pass, and rode before her to Bristow, the Lord Wilmot attending, for the most part at a distance. In all which journey Mrs. Lane perform'd the part of a most faithful and prudent servant to his Majesty, shewing her observance, when any opportunity would allow it, and at other times acting her part in the disguise with much discretion.

But his Majesties particular *Gifts* to Bristow and to the houses of several loyal subjects, both in *Somersetshire*, *Wiltshire*, *Hampshire*, and so to *Brighempston in Sussex*, where he, about the end of October 1651. took shipping, and landed securely at *Deip in France*, and the several accidents, hardships and encounters, in all that journey, can be exactly related by none but his Majesty himself; now since the much lamented death of that faithful subject and excellent souldier the *Lord Wilmot*, who was created Earl of *Rochester*, as a part of that recompence his Majesty thought due to so great a fidelity.

The very next day after his Majesty was gone from Boscobel, being Monday the 8. of September, two parties of rebels came thither, the one being part of the county troop, who search'd the house with some civility;

The other, Capt. Broadwayes men, these search'd severely, eat up their little store of provision, plunder'd the house of what was portable, and one of them presented a pistol to William Penderel, and much frighted my Dame Joan; yet both parties return'd, as empty as they came, of that intelligence they so greedily sought after.

This danger being over, honest William began to think of making satisfaction for the fat mutton, and accordingly tender'd Mr. Staunton its worth in money; but Staunton, understanding the sheep was kil'd for the relief of some honest cavaliers, who had been shelter'd at Boscobel, refus'd to take the money, but wish'd, much good it might doe them.

These *Penderels* were of honest parentage, but mean degree, six brothers born at *Hobbal Grange* in the parish of *Tong*, and county of Salop, William, John, Richard, Humphry, Thomas, and George; *John*, *Thomas* and *George* were soldiers in the first war for his late Majesty, *Thomas* was slain at Stow fight, *William*, as you have heard, was a servant at Boscobel, *Humphry* a miller, and *Richard* rented a part of *Hobbal Grange*.

His Majesty had not been long gone from Boscobel, but Col. Carlis sent William Penderel to *Mr. Humphry Ironmonger*, his old friend, at Wolverhampton, who not only procured him a pass from some of the rebel commanders in a disguised name to goe to London, but furnish'd him with money for his journey, by means whereof he got safe thither, and from thence into Holland, where he brought the first happy news of *his Majesties* safety to his *royal sister*, the *Princess of Orange*.

This *Col. William Carlis* was born at Bromhall in Staffordshire, within two miles of Boscobel, of good parentage, is a person of approved valor, and was engag'd all along in the first war for his late Majesty of happy memory; and since his death has been no less active for his Majesty that now is; for which and his particular service and fidelity before mentioned, his Majesty has been pleased by letters patents under the great seal of England to give him, by the name of *William CARLOS* (which in Spanish signifies *Charls*)

this very honorable coat of armes, *in perpetuam rei memoriam*, as 'tis expressed in the letters patents.



*He bears upon an Oake proper, in a Feild Or a Fess Gulles,
charged with 3 Regal Crowns of y^e second: by the name of Carlos.
And for his Creast a Civic Crown, or Oaken Garland, with a
Sword and Scepter crossed through it Saltierwise.*

The *Oake* is now properly call'd *The Royal Oake of Boscobel*, nor will it lose that name whilst it continues a tree: And since his Majesties happy restauration, that these mysteries have been revealed, hundreds of people for many miles round, have flock'd to see the famous BOSCOBEL, which (as you have heard) had once the honour to be the palace of his sacred Majesty,

but chiefly to behold the royal oake, which has been depriv'd of all its young boughs by the visitors of it, who keep them in memory of his Majesties happy preservation.

This Boscobel-house has yet been a third time fortunate; for after Sir George Booths forces were routed in Cheshire, in August 1659. the Lord Bruerton, who was engaged with him, took sanctuary there for some time, and was preserved.

When his Majesty was thus happily convey'd away by Col. Lane and his sister, the rebels had an intimation that some of the brothers were instrumental in his Majesties preservation; so that besides the temptations Humphry overcame at Shefnal, William Penderel was twice questioned at Shrewsbury on the same account by Capt. Fox and one LLuellin a sequestrator, and Richard was much threatned by a peevish neighbour at Whiteladies; but neither threats nor temptations were able to batter the fort of their loyalties.

After the *King had entred into the Kingdom, and returned to his own land*, the 5. brothers attended him at *White-hall*, on Wednesday the 13. of June 1660. when his Majesty was pleased to own their faithful service, and graciously dismiss'd them with a princely reward.

Dan. 11.
9.

And soon after Mr. Huddleston and Mr. Whitgreave made their humble addresses to his Majesty, from whom they likewise receiv'd a gracious acknowledgment of their service and fidelity to him at Mosely; and this in so high a degree of gratitude, and with such a condescending frame of spirit, not at all puff'd up with prosperity, as cannot be parallel'd in the best of Kings.

Here let us all with glad and thankful hearts humbly contemplate the admirable Providence of Almighty God, who contriv'd such wonderful wayes, and made use of such mean instruments for preservation of so great a person: Let us delight to reflect minutely on every particular, and especially on such as most approach to miracle; let us sum up the number of

those, who were privy to this first part of his Majesties disguise and concealment; *Mr. Giffard*, the five *Penderels*, their mother and three of their wives, *Col. Carlis*, *Francis Yates* and his wife, some of the inhabitants of *Whiteladies*, *Mr. Woolf*, his wife, daughter and maid, *Mr. Whitgreave* and his mother, *Mr. Huddleston*, *Col. Lane* and his sister; and then consider whether it were not indeed a *miracle*, that so many men, and (which is far more) so many women should faithfully conceal so important and unusual a secret; and this notwithstanding the temptations and promises of reward on the one hand, the danger and menaces of punishment on the other.

To which I shall adde but this one circumstance, that it was concealed by persons, for the most part, of that religion, which has long suffer'd under an imputation (laid on them by some mistaken zelots) of disloyalty to their sovereign.

And now, on my bended knees, let me joyfully congratulate his restored Majesty, and humbly offer him this short and hearty wish, O KING, LIVE FOR EVER. And not content with my own inconsiderable prayers, with all my soul I beg the universal assistance of others, earnestly inviting all the nation, even all the three nations, to sing

Dan.	3.
10.	

Te Deum Laudamus.

2 SAM. xix. 14.

And he bow'd the hearts of all the people, as the heart of one man; So that they sent this word unto the King, Return thou and all thy servants.

FINIS.

Footnotes

[1] This is not the only account that is published, for we find it related by Bates, in his *Elenchues*, and by the Earl of Clarendon, whose account he received from the king himself.

[2] The original style, &c. being preserved, will account for the very erroneous *punctuation*, to which it was deemed necessary to adhere.

[3] Excommunicated by an ecclesiastical court similar to ours, only more rigid in its effects.

[4] D. Parkes, in the *Gentleman's Magazine* for 1792, p. 893, says there is the following epitaph at White Ladies.

"Here lieth
the Bodie of a friende
the King did call
Dame Joane—
but now she is
deceast & gone.
Interred anno Do.
1669."

*** END OF THE PROJECT GUTENBERG EBOOK BOSCOBEL ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.